

DEPARTMENT TWENTY-TWO
HONORABLE ALESIA JONES
707-207-7322

**TENTATIVE RULINGS
AND
PROBATE PREGRANTS**

CALENDAR DATE: June 17, 2026

ADVISEMENTS

Probate Notes: Probate notes are available in individual cases and are not posted on the public website. For more information on how to access case information through the court's public portal, please visit <https://portal.solano.courts.ca.gov>.

Civil Tentative Rulings and Probate Pregrants: Current procedures to advise the court of appearances and nonappearances in response to tentative rulings and pregrants remain unchanged. Probate pregrants and tentative rulings are not posted for conservatorships, guardianships, or any ex parte matters.

Appearances by Zoom: Remote appearances by Zoom are permitted except for MSCs, TMCs, trials or evidentiary hearings, or cases in which in-person appearances have been ordered. Persons appearing by Zoom are to be in appropriate attire. They are also to be in a quiet place where they can speak without interruption and clearly hear the proceedings.

Zoom Meeting ID: 160 941 6482

Zoom Meeting Passcode: 693685

To access Zoom by telephone:

• 833 568 8864 US Toll-free

**PREGRANTS AND TENTATIVE RULINGS
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LINE

2

**IN RE THE ESTATE OF RUIJU MA, DECEASED
FPR051434**

Amended Petition for Final Distribution, Final Accounting, Discharge of Administrator and Close of Estate

PREGRANT ORDER

The court continued this matter from September 26, 2024, January 9, 2025, May 1, 2025, August 14, 2025, December 4, 2025, January 26, 2026, March 5, 2026, and May 13, 2026 to allow the petitioner to address the issues with the petition and the first amended petition. The court has reviewed the second amended petition filed June 11, 2026.

The court on its own motion continues this hearing to August 19, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. A second amended petition was filed and served on June 11, 2026 for the hearing on June 17, 2026. An amended pleading requires the same notice of hearing as the pleading it amends. (Cal. Rules of Court, Rule 7.53.) The proof of service shows that notice was given on June 11, 2026 for a June 17, 2026 hearing, which is far fewer than the 15 days required by the Probate Code.
2. The accounting attached to the second amended petition does not comply with Probate Code section 1061.

LINE

3

**IN RE THE ESTATE OF ROGELIO ESCOBEDO, DECEASED
PR23-00465**

Third Amended Final Accounting and Petition for Order for Final Distribution

PREGRANT ORDER

This matter was continued from September 18, 2025, December 18, 2025, March 4, 2026, and April 30, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the third amended petition filed May 15, 2026 which resolved the outstanding issues.

The court finds all notices have been given as required by law. The petition is granted as prayed, except that release of liability and discharge shall be ordered only upon the filing of the *Ex Parte Petition for Final Discharge and Order* once assets are distributed pursuant to Probate Code § 11753.

Petitioner to submit a conforming order for the court's review and signature.

LINE

4

IN RE THE ESTATE OF JOALLEN DULAY CASTADA, DECEASED
PR24-00522

First and Final Report of Petitioner and Waiver of Accounting and Petition for Its Settlement and For Allowance of Statutory Compensation to Attorney for Ordinary Services

PREGRANT ORDER

This matter was continued from May 14, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the Allowance or Rejection of Creditor Claim forms filed May 20, 2026 which only resolved one issue.

The court on its own motion continues this hearing to August 26, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the petitioner shall resolve the following issues:

1. Mortgage: The attached mortgage statements show the payments being past due in the amount of \$13,334.23 as of October 1, 2024. The Notice of Trustee Sale shows that the sale was to occur on March 23, 2026. It is unclear how much of the mortgage payments were unpaid at the time the sale occurred in March 2026. The inventory and appraisal shows that the estate had \$27,225.90 in cash assets. It is unclear how this cash was used for the benefit of the estate or why this asset was not used to pay the past due mortgage payments and sell the real property at that time. The petitioner shall explain and provide supporting documents.
2. Estate Assets on Hand: It is unclear how the petitioner arrived at the balance of \$5,833 on hand. The estate had \$27,225.90 in cash assets and no creditor claims were paid. There was no summary of account to show the estate assets at the beginning of the account and at the end of account. (See Prob. Code §10900(a) and §1060, et seq.) Even if the account is waived, the petitioner must still provide values of receipts and disbursements. The petitioner is reminded that the court may order a complete accounting at any time even if the accounting is waived. (Prob. Code §10950.)
3. Attorney Fees: The petition proposes to pay \$15,851.96 in the statutory fees, but the estate is illiquid. The petitioner shall explain how the requested attorney fees will be paid from an illiquid estate.
4. Proposed Distribution: There is no proposed distribution to show how the liabilities of the estate will be paid. This would include the creditor claims. It is also

unclear how the attorney will be paid. The petitioner shall explain and provide a proposed distribution of how the petitioner intends to distribute the balance.

5. Postage: The petitioner seeks reimbursement to her attorney for postage costs. However, postage is not reimbursable per Solano County Local Rules, Rule 7.72 absent extraordinary circumstances. What extraordinary circumstances exist such that these expenses are properly reimbursed from the estate?

LINE

5

**IN RE THE ESTATE OF HEATHER LYNN PHILLIPS, DECEASED
PR25-00492**

First Amended First and Final Account and Report of Administrator and Petition for its Settlement, and Petition for Approval of:

1. Final Distribution;
2. Allowance of Compensation to Administrator Ordinary Services;
3. Allowance of Compensation to Attorneys for Ordinary Services;
4. Allowance of Reimbursement of Costs to Administrator and Anticipated Costs to Attorneys;
5. Reserve for Closing Expenses;
6. Discharge of Creditors; and
7. Exoneration and Release of Bond

PREGRANT ORDER

This matter was continued from April 20, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the amended petition and the allowance of creditor claim forms filed June 4, 2026 which resolved the outstanding issues, but created a new issue.

The court on its own motion continues this hearing to August 26, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

Amended petitions replace the original petition for all purposes. (Cal. Rules of Court, Rule § 7.3(3).) Notice of amended petitions must be given in the same manner as notice for original petitions. (Cal. Rules of Court, Rule § 7.53(a).) The filed proof of service shows that service was done on June 8, 2026 which is less than the 15 days required by the Probate Code.

LINE

6

**IN THE MATTER OF THE GEORGE F. REIRCH AND ALICE L. RERICH
FAMILY TRUST, DATED SEPTEMBER 5, 2001**

PR25-00806

Petition to Compel Accounting; For Breach of Fiduciary Duty Under Probate Code §17200, For Self-Dealing, and For Removal of Co-Trustees

Objections to Petition to Compel Accounting; For Breach of Fiduciary Duty Under Probate Code §17200, For Self-Dealing, and For Removal Of Co-Trustee

Petition for Settlement of Account (Probate Code §17200(b)(5))

PREGRANT ORDER

This matter was continued from April 22, 2026 to allow the petitions to be heard together.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the following:

As to the Petition to Compel Accounting:

The petitioner shall report whether the accounting has resolved the issues raised in this petition.

As to the Petition for Settlement of Account:

1. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 17203.
2. The total Charges and Credits do not match.

LINE

7

IN RE THE ESTATE OF CATHERINE BUCKNER, DECEASED
PR26-00172

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from May 4, 2026 to allow the petitioner to address issues with the petition. The court has reviewed the documents filed May 19, 2026 which resolved the outstanding issues.

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

The court appoints Mary Brayboy as administrator with full authority under the Independent Administration of Estates Act.

Bond is set at \$488,000.00. Letters shall not issue until bond is posted with the clerk. The personal representative shall sua sponte apply for an increase in bond in the event the aggregate value of the estate's assets exceeds \$488,000.00.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory and Appraisal is set for November 16, 2026 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.

The personal representative shall file either their petition for final distribution or their first status report within 12 months of the date letters are issued. **A compliance hearing regarding the filing and service of the petition or status report is set for August 16, 2027 at 11:00 a.m. in Department 22.** The personal representative or their counsel shall attend this compliance hearing. Appearances are excused if the appropriate documents are on file prior to the hearing.
